DRAFT FOR LEGAL REVIEW — Mutual Non-Disclosure Agreement (Founding Beta)

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of ________ ("Effective Date") between **Plaintiff Ops LLC**, a California limited liability company ("Plaintiff Ops"), and ______ ("Firm"), together the "Parties."

Purpose. The Parties wish to evaluate a founding-cohort beta of Plaintiff Ops' "Intake QA" service, in which the Firm may share intake-call recordings, transcripts, and related business information with Plaintiff Ops, and Plaintiff Ops may share non-public product, methodology, and pricing information with the Firm (the "Purpose").

1. Confidential Information. "Confidential Information" means any non-public information disclosed by one Party ("Discloser") to the other ("Recipient") in connection with the Purpose, whether oral, written, or electronic, that is designated confidential or that a reasonable person would understand to be confidential — including, for the Firm: call recordings, transcripts, caller information, case and client information, staffing and financial information; and, for Plaintiff Ops: product design, scoring methodology and rubrics, prompts, pricing, roadmaps, and beta findings.

2. Exclusions. Confidential Information does not include information that (a) is or becomes public through no fault of the Recipient; (b) was lawfully known to the Recipient before disclosure; (c) is lawfully received from a third party without duty of confidentiality; or (d) is independently developed without use of the Discloser's Confidential Information.

3. Obligations. The Recipient will (a) use Confidential Information solely for the Purpose; (b) not disclose it to anyone except employees and contractors who need it for the Purpose and are bound by confidentiality obligations at least as protective as this Agreement; (c) protect it with at least the care it uses for its own confidential information, and no less than reasonable care.

4. Privileged and client material (the clause that matters). The Parties intend and agree that:
(a) The Firm's disclosure of call recordings, transcripts, or client-related material to Plaintiff Ops is made in furtherance of the Firm's provision of legal services and quality control, with Plaintiff Ops acting as the Firm's agent and at the Firm's direction;
(b) such disclosure is **not intended to waive**, and shall not be argued by either Party to waive, the attorney-client privilege, work-product protection, or any other applicable

privilege or protection;
(c) Plaintiff Ops will not use Firm call audio, transcripts, or caller information to train any artificial-intelligence model, and will pass equivalent no-training and zero-retention obligations to its subprocessors;
(d) Plaintiff Ops will not contact any caller, client, or prospective client of the Firm;
(e) upon the Firm's request or the end of the beta, Plaintiff Ops will delete the Firm's call recordings, transcripts, and derived caller-level data per its published deletion policy, except records it must retain by law.

5. Compelled disclosure. If the Recipient is required by law to disclose Confidential Information, it will (where lawful) give the Discloser prompt notice and reasonable cooperation to seek protective treatment, and disclose only what is required.

6. No license; no obligation. No license or IP right is granted except as needed for the Purpose. Neither Party is obligated to proceed with any transaction. Feedback the Firm volunteers about the service may be used by Plaintiff Ops to improve the service, provided it is used without identifying the Firm and without any Firm Confidential Information.

7. Term. This Agreement covers disclosures made within one (1) year of the Effective Date. Obligations survive for three (3) years from each disclosure, except for call recordings, transcripts, and client-related material, which remain confidential indefinitely.

8. Return or destruction. On written request, the Recipient will promptly delete or return the Discloser's Confidential Information, certifying deletion on request, subject to legally required retention.

9. Remedies. Breach may cause irreparable harm; the Discloser may seek injunctive relief in addition to other remedies, without posting bond.

10. General. Governed by California law; venue in Los Angeles County, California. This is the entire agreement on confidentiality for the Purpose and may be amended only in a writing signed by both Parties. No assignment without consent. If any provision is unenforceable, the rest stands. Counterparts and electronic signatures are effective.

	Plaintiff Ops LLC	Firm
Signature		
Name	Ali Ansari	
Title	Founder	
Date		

Reviewer notes (Yang)

1. §4(a)–(b) is the privilege-preservation clause modeled on vendor-BAA practice; confirm the agency framing is the strongest available for a non-lawyer vendor under CA law.
2. Venue: LA County chosen because the beta cohort will be recruited via LACBA; flag if this should differ.
3. Confirm §7's indefinite tail for client material doesn't conflict with the deletion cascade (it shouldn't — confidentiality outlives deletion).
4. A separate BAA/DPA covers HIPAA and subprocessor terms; the DPA already published on the site is referenced, not duplicated, here.